



VICTORIA POLICE

Freedom of Information
Governance and Assurance Department

Victoria Police Centre
GPO Box 913
Melbourne VIC 3001
DX 210096

foi@police.vic.gov.au

Office Hours: 8:30am – 4:00pm

Our ref: 78600/22: HL

Dr Rich Mclean
2 McCubbin Street
Footscray VIC 3011

Email: dr-richmcleanwhistleblower@gmail.com

Dear Dr Mclean

FREEDOM OF INFORMATION REQUEST

Your email letter of request seeking access to documents under the provisions of the *Freedom of Information Act* 1982 (the Act), was received by Victoria Police on 24 March 2022.

Fee Required

Your attention is drawn to section 17(2A) of the Act which requires that a request must be accompanied by a fee of \$30.10.

My office does not have the EFT facilities to process payments. Please either send a cheque/money order to my office via post or visit <https://ovic.vic.gov.au/freedom-of-information/for-the-public/make-your-request-online/> to make payment of the application fee. If payment is made via the above online portal, please simply record the FOI file number in the summary field.

Photo ID Required

Before any further action is taken, I require documentary proof of your identity e.g. a copy of your driver's licence, passport and/or other document with your photo and current residential address.

On receipt of your proof of photo ID, your request will be considered in accordance with the provisions of the Act.

Questions

At the outset, I should explain that the role of the Freedom of Information Officer for Victoria Police is to receive and process requests made under the Act on behalf of the Chief Commissioner and to provide responses to those requests in terms of the provision of documents. This does not extend to the provision of information or the answering of questions

Request for “any/all” documents

I advise that in regard to your request for “**All police reports to do with me**” I advise that the Act does not require an agency to conduct a search on behalf of an applicant for all (or any) possible documents relevant to the applicant’s request if those documents are not sufficiently identified.

A request must identify documents by reference, at the very least, to the nature, type or subject matter of the documents to facilitate identification. In addition, sufficient information must be provided so that the documents can be properly identified not only by a reasonable description, but also by date or within a reasonable time period.

Please note however, there is the capacity to extract a “**person history report**” from LEAP. This report shows an individual’s information as held by Victoria Police and lists their involvements (being all interactions that person has had with Victoria Police that have been recorded in the LEAP database).

Although a LEAP person history report will not provide you with details of the listed involvements, accessing this report may assist you to identify particular incidents and, if you wish, you could submit a further Freedom of Information request for documents associated with one or more of these incidents or involvements.

Additional Information Required

I advise that as it stands, your request is too generic in nature for me to identify specific documents to which you seek access. Therefore, in order for me to conduct a search of Victoria Police records, I request you provide this office with additional information as required under section 17(2) of the Act which states:

“A request shall provide such information concerning the document as is reasonably necessary to enable a responsible officer of the agency, or the Minister, as the case may be, to identify the document.”

The information you provide should include:

- the nature of the incident or investigation
- the date and location of the incident
- the names of any other people involved
- the names of any investigating police members
- the police station involved

Under section 17(4) of the Act, an applicant must be given a reasonable opportunity of consultation in order to make the request in a form that would comply with section 17(2) of the Act.

Please note; any documentation requested outside of Victoria Police Departments, or concerning other government agencies, departments, or bodies, must be applied for using the appropriate channels directly to that agency. Victoria Police, Freedom of Information Office, can only access documentation which relates to this organisation.

Accordingly, a response clarifying your request, a copy of your photo ID, and payment of the application fee, is required within **28 days** of receiving this letter.

If I have not received your reply before **21 April 2022**, I will consider that documents are no longer required, and your request will be finalised.

Please be advised that although you are not required to do so, if you are not able to provide a signed authority from a person authorising the release of their information to you, then any documentation that may identify someone other than yourself cannot be released to you.

If you have any queries, please email this office at foi@police.vic.gov.au and quote the reference number: **78600/22**.

Yours sincerely

A handwritten signature in black ink, appearing to be 'CK' or 'RK'.

Robin Davey
Manager
Freedom of Information Division

Date: 24 March 2022.